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OCBA Civility Guidelines

"The American legal profession exists to help people resolve disputes cheaply, swiftly, fairly, and justly. Incivility between counsel is sand in the gears."

(*Karton v. Ari Design & Construction, Inc.* (2021) 61 Cal.App.5th 734, 747.)

TENTATIVE RULINGS
Judge Kimberly Knill, Dept. C31

- The court encourages remote appearances to save time, reduce costs, and increase public safety. Go to [Check-In Results - Orange County Superior Court](#) and click the blue box, "Click here to appear/check-in for Civil Small Claims/Limited/Unlimited/Complex remote proceedings." Navigate to Department C31 Judge Kimberly Knill.
- All hearings are open to the public.
- If you desire a transcript of the proceedings, you must provide your court reporter (unless you have a fee waiver and request a court reporter in advance).
- Call the other side. If everyone submits to the tentative ruling, call the clerk at 657-622-5231. Otherwise, the court may rule differently at the hearing. (See *Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

No filming, broadcasting, photography, or electronic recording of the video session is permitted pursuant to California Rules of Court, rule 1.150, and Orange County Superior Court rule 180.

HEARING DATE: Friday, 8/21/2026 10:00 AM

#	Case Name	Tentative
1	Estrada vs. Segade 30-2022-01292722-CU-PA-CJC	Motion to be Relieved as Counsel of Record The motion of attorney Sasha Tymkowicz to withdraw as attorney of record for Plaintiff Monica Margarita Estrada is DENIED. (Code Civ. Proc., § 284, Cal. Rules of Court, rule 3.1362.) Counsel failed to demonstrate service. The declaration filed in support of this Motion does not attest to the manner of service and the proof of service does not show service on Plaintiff. Clerk to give notice.
2	Sepulveda vs. Reznick	Motion to be Relieved as Counsel of Record

	30-2025-01537296-CU-PA-CJC	The motion of attorney Lessing C. Solov from Solov & Teitell, a P.C., to be relieved as counsel of record for plaintiff Fermin Sepulveda is GRANTED. Moving attorney has shown compliance with all the requirements of the California Rules of Court, Rule 3.1362. Moving attorney is ORDERED to give notice to client, and file proof of service of the Court's order as entered. Withdrawal will be effective upon filing of proof of service of the order.
3	Hansei Solutions, LLC. vs. Better Soul, Inc. 30-2024-01404393-CU-BC-CJC	Motion to Vacate Dismissal Plaintiff Hansei Solutions, LLC's unopposed motion to vacate the dismissal of the fifth and sixth causes of action in the First Amended Complaint entered on 3/6/2026 (ROA 52) is GRANTED. Plaintiff has demonstrated the request for dismissal was due to Plaintiff's counsel's mistake, inadvertence, surprise, or neglect. (Code Civ. Proc. § 473, subd. (b).) The dismissal of the fifth and sixth causes of action in the First Amended Complaint entered on 3/6/2026 (ROA 52) is VACATED. Clerk to give notice.
4	Espinoza Aceves vs. Southern California Edison Company 30-2024-01436382-CU-PO-CJC	Motion to Consolidate Cases Defendant/cross-complainant Southern California Edison Company's (SCE) motion to consolidate is DENIED. SCE moves to consolidate the following cases for all purposes: (1) Jonhathan Espinoza Aceves v. Southern California Edison Company, et al., case number 2024-01436382 (Aceves) (2) KF Properties, Inc. v. Brightview Landscapes, LLC, case number 2025-01494489 (KF Properties); and (3) Southern California Edison Company v. Brightview Landscape Services, Inc., et al., case number 2025-01534849 (SCE)

		KF Properties was dismissed with prejudice as to the entire action of all parties and all causes of action on 7/14/26. (ROA 42.) It does not appear from the allegations in Aceves and SCE that these matters involve the same incident. Aceves alleges the subject premises is 845 West La Veta Avenue, Ste. 108 Los Angeles, CA 90069. (Compl. ¶ 8.) Aceves further alleges the incident occurred on 4/17/2024 while Plaintiff was performing landscaping work and made contact with underground electric wiring installed and maintained by Defendants. (Compl. ¶ 9.) SCE alleges it was the owner of a certain primary cable, located at or near 805 W. La Veta Avenue, Orange, CA 92868. (Compl. ¶ 12.) SCE further alleges Defendants damaged SCE's primary cable while performing excavation work on 4/14/2024. (Compl. ¶¶12-15.) As the complaints allege different locations (Los Angeles versus Orange), actions (landscaping versus excavation), and dates of incident (4/14/2024 versus 4/17/2024), the Court does not find they involve "a common question of law or fact." (Code Civ. Proc., § 1048, subd. (a).) SCE to give notice.
5	Omega Accounting Solutions, Inc. vs. Acme Freight 30-2026-01547608-CU-PO-CJC	Motion to Compel Arbitration and Stay Case Continued to 10/16/2026.
6	Becerra Law Firm vs. David Yeremian & Associates, Inc. 30-2026-01564931-CU-NP-CJC	Motion to Transfer Venue and Request for Fees and Costs Defendants David Yeremian & Associates, Inc., D.Law, Inc., Law Offices of Sahag Majarian II, and Law Offices of Neal J. Fialkow, Inc.'s Motion to Transfer Venue and Request for Fees and Costs Pursuant to CCP § 396b(b) is GRANTED. The Court DENIES Defendants' and Plaintiffs' requests for judicial notice as unnecessary to the analysis. (<i>Appel v. Superior Court</i> (2013) 214 Cal.App.4th 329, 342 fn. 6.) Code of Civil Procedure section 395.5 governs venue for corporate defendants. "A corporation or association may be sued in the county where the contract is made or is to

	be performed, or where the obligation or liability arises, or the breach occurs; or in the county where the principal place of business of such corporation is situated, subject to the power of the court to change the place of trial as in other cases.” No Defendant has a principal place of business in Orange County. (Yeremian Decl., ¶ 2; Majarian II Decl., ¶ 2; Fialkow Decl., ¶ 2.) The “obligation or liability” at issue arose from Defendants’ use of litigation assets created during the Orange County Estrada litigation in the Los Angeles County Gutierrez litigation. No obligation to compensate Plaintiffs for those litigation assets would arise until they were used without compensation to Plaintiffs, and Plaintiffs do not dispute they were used in Los Angeles County in the Gutierrez litigation. The Court GRANTS Defendants’ request for attorneys’ fees in the reduced amount of \$3,368. The court finds 12.3 hours spent on the motion is excessive. The primary disputed issue, where the “obligation or liability” arose was not particularly complex. The parties did not dispute that work performed by Plaintiffs was used by Defendants. Thus, time spent on the requests for judicial notice of court documents, for example, was unnecessary. The case is ORDERED transferred to the Los Angeles Superior Court. Plaintiff is ORDERED to pay all fees necessary to effectuate the transfer, which include, but are not necessarily limited to, (1) the transfer fee of \$50, which must be paid via check made payable to the clerk of the Orange County Superior Court, and (2) the first appearance fee for the new court, which must be paid via a separate check payable to the clerk of the Los Angeles County Superior Court. Plaintiff is ORDERED to submit both checks to the clerk of the Orange County Superior Court within 30 days (the first appearance check will be forwarded to the new court along with other materials). Plaintiff is further ORDERED to take all other steps necessary to effectuate the transfer. CMC scheduled for 9/24/2026 is VACATED. Venue Change Status Review set for 9/24/2026 at 1:30 PM. If the case has not been transferred, Plaintiff is ORDERED to file a status report 5 days prior.
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		Failure to comply with the court's orders may result in sanctions pursuant to Code of Civil Procedure section 177.5. Clerk to give notice.
7	Kim vs. Kim 30-2025- 01517838-CU- FR-CJC	Demurrer to First Amended Complaint Defendants Kum Ok Kim and Shinae Park's Demurrer to the First Amended Complaint is SUSTAINED without leave to amend as to the second cause of action. The demurrer is OVERRULED as to the first and third causes of action. Defendant Kim demurs to the first and second causes of action for promissory estoppel and quiet title, respectively. Defendant Park demurs to the third cause of action for conversion. Defendants' request to strike Plaintiffs' claim for punitive damages and attorney's fee are not proper grounds for demurrer. (Code Civ. Proc., § 430.10.) <u>First Cause of Action – Promissory Estoppel</u> Plaintiffs adequately plead promissory estoppel. Plaintiffs allege a clear promise that defendant Kim would give Plaintiffs an interest in the property in exchange for their caregiving services. (FAC, ¶¶ 6-7, 12, 30.) Plaintiffs relied on this promise to their substantial detriment by contributing to the household expenses and providing fulltime care for the ailing father that ultimately required them to close their business. (FAC, ¶¶ 8-11, 31.) Plaintiffs also allege the resulting damages. (FAC, ¶ 33.) Whether the evidence clearly and satisfactorily proves an equitable exception to the statute of frauds, including promissory estoppel, is not properly decided at the pleading stage. <u>Second Cause of Action – Quiet Title</u> Plaintiffs have alleged they have constructive or equitable title based on their promissory estoppel claim. (FAC, ¶35.) They do not allege fraud. Thus, their quiet title claim fails to allege a basis for their title. (See <i>Liberty National Enterprises, L.P. v. Chicago Title Ins. Co.</i> (2013) 217 Cal.App.4th 62, 81 [cleaned up].) Plaintiffs allege a constructive trust arose in their favor as a result of defendant Kim's promise. (FAC, ¶ 36.) However, this allegation does not save the claim. A constructive trust requires either a conveyance of property induced by fraud, or a conveyance coupled with

		a confidential relationship and a subsequent repudiation of an oral promise to hold the property in trust. (See <i>Orella v. Johnson</i> (1952) 38 Cal.2d 693, 696.) Plaintiffs do not allege any conveyance occurred. <u>Third Cause of Action - Conversion</u> Plaintiffs adequately plead a conversion claim against Defendant Park. Plaintiffs allege their ownership of specific sums of money and personal property. (FAC, ¶¶ 16, 39.) Defendants Park and Kim wrongfully exercised control over the money and property by taking them. (FAC, ¶¶ 18, 40.) Plaintiffs also allege damages. (FAC, ¶ 41.) Defendants are ORDERED to file an answer within 10 days. Defendants to give notice.
8	Grigsby vs. Steele Canyon Golf Course Corp. 30-2024-01435496-CU-PO-CJC	Demurrer to Third Amended Complaint The Demurrer to Plaintiff's Third Amended Complaint (TAC) by Defendants Steele Canyon Golf Club Corporation d.b.a. Dove Canyon Golf Club and Pacific Golf Management; SJS Tomorrow, LLC; SJD, LLC; Dove Canyon Golf Club, LLC; Lawrence Taylor; Colin Radchenko; Chloe Kim; John Glasoe; and Gabe Ramos is SUSTAINED without leave to amend in part and OVERRULED in part as set out below. In opposition, Plaintiff states the following parties will be dismissed without prejudice: Dove Canyon Golf Club, LLC will be dismissed without prejudice from all causes of action except the fifth cause of action for premises liability; Lawrence Taylor and Colin Radchenko will be dismissed without prejudice. The TAC is dismissed as to Lawrence Taylor and Colin Radchenko. The remaining Defendants demur to all eight causes of action in the TAC. <u>Procedural History:</u> The Court previously sustained Defendants' demurrers to the first and second amended complaints, which asserted causes of action arising from Plaintiff's workplace injuries, on grounds including workers compensation exclusivity. (See 2/13/26 and 6/16/25 Minute Orders.) The 2/13/26 order sustained with leave to amend stating, "this will likely be plaintiff's last opportunity to amend."

		Defendants assert Plaintiff's common law claims are precluded by the workers compensation exclusivity doctrine, and Plaintiff's statutory claims fail to state sufficient facts. Plaintiff filed an untimely opposition and the Court continued the hearing to allow Defendants to reply. The Court exercises its discretion to consider the untimely opposition. <u>Workers Compensation Exclusivity:</u> Defendants contend Plaintiff's common law claims for premises liability (fifth cause of action), intentional infliction of emotional distress (sixth cause of action), wrongful termination – constructive discharge (seventh cause of action), and negligence (eighth cause of action) are barred by the workers compensation exclusivity doctrine. "Physical and emotional injuries sustained in the course of employment are preempted by the workers' compensation scheme and generally will not support an independent cause of action. Emotional injuries caused by workplace discipline, including termination, fall within this rule." (<i>Yau v. Santa Margarita Ford, Inc.</i> (2014) 229 Cal.App.4th 144, 161 [cleaned up]; see Lab. Code, § 3600 et seq.) Plaintiff asserts the common law claims allege conduct that was so outrageous it fell outside the compensation bargain. Workers compensation exclusivity bars Plaintiff's claims for negligence, premises liability, and intentional infliction of emotional distress, which all arise from alleged injuries sustained by Plaintiff during the course of performing his work duties. However, the claim for wrongful termination is based on Plaintiff resigning after being "subjected to working conditions that violated public policy." (TAC, ¶ 196.) At the pleading stage, the Court cannot say this claim arises solely from physical/emotional injuries sustained in the course of employment, so the exclusivity doctrine does not bar the wrongful termination claim. Therefore, the demurrer is SUSTAINED without leave to amend as to the fifth, sixth, and eighth causes of action. <u>Failure to Plead Facts Supporting Wrongful Termination – Constructive Discharge:</u>
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		Defendants contend this claim is uncertain and ambiguous including failure to specify the public policy which was violated by the alleged working conditions which caused him to resign. At this stage, the cause of action is sufficiently pled and Defendants may conduct discovery regarding the details of Plaintiff's allegations. The demurrer is OVERRULED as to the seventh cause of action. <u>Failure to Plead Facts Supporting Government Code § 12940 Claim:</u> Plaintiff states he will dismiss this cause of action without prejudice. The first cause of action is dismissed. <u>Failure to Plead Facts Supporting Labor Code §§ 1102.5, 98.6, and 6310 Claims:</u> Defendants argue Plaintiff fails to allege facts supporting these Labor Code claims arising from alleged retaliation. Plaintiff asserts Defendants waived their right to demur to these claims, which were alleged in the SAC but not objected to in Defendants' demurrer to the SAC. Defendant responds Plaintiff's Labor Code sections 98.6 and 1102.5 claims were combined in a single cause of action in the SAC but distinct in the TAC, therefore they are not identical. Defendant also contends the Labor Code section 6310 claim was revised with regard to the supporting facts alleged. The Labor Code claims in the SAC are substantially identical to the Labor Code claims in the TAC. Defendants have waived their right to demur to these claims. (Code Civ. Proc., § 430.41, subd. (b).) Therefore, the demurrer is OVERRULED as to the second, third, and fourth causes of action. The remaining defendants are ORDERED to file an answer within 5 days. Plaintiff's motion for relief from untimely submission of opposition to demurrer scheduled for 10/9/2026 is VACATED. Clerk to give notice.
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9	Albanese vs. Navient Corporation 30-2025-01516849-CU-CR-CJC	Demurrer to First Amended Complaint Defendants Navient Corporation and Navient Solutions, LLC's (collectively Navient) Demurrer to the First Amended Complaint (FAC) is OVERRULED. Navient's request for judicial notice of the District Court for the Southern District of Iowa's ruling in <i>Nelson v. Navient, et al.</i> is GRANTED as a record of the courts of the United States. However, the District Court's opinion is not binding on this Court just as the numerous other citations to district court cases in the briefings. (See <i>Qualified Patients Assn. v. City of Anaheim</i> (2010) 187 Cal.App.4th 734, 764.) Navient Corporation contends it is not a proper defendant because it is a holding company and Plaintiff has not alleged sufficient facts to support alter ego liability against it. However, Plaintiff alleges Navient Corporation itself participated in the acts alleged in the FAC. <u>1st Cause of Action – Violation of Student Borrower Bill of Rights (Civil Code sections 1788.100-1788.105)</u> Civil Code section 1788.101 prohibits certain actions including "abusive acts or practices when servicing a student loan in this state." (Civ. Code, § 1788.101, subd. (a)(1).) Subdivision (a)(2)(A) enumerates "[m]aterially interfering with the ability of a borrower to understand a term or condition of a student loan" as an abusive act or practice. Further, subdivision (a)(3) expands the definition of "abusive acts and practices" beyond "those described in paragraph (2)." Plaintiff has sufficiently alleged Navient violated Civil Code section 1788.101. Plaintiff alleges Navient materially interfered with his ability to understand the terms and conditions of his student loans, repeatedly and incessantly called him, and contacted his friends and family about the loans. (FAC, ¶ 96.) Plaintiff also alleges violations of Section 1788.102 for failing to properly respond to Plaintiff's written requests, provide information requested, addressing requested errors, and providing an escalation process. <u>2nd Cause of Action – Violation of the Rosenthal Act (Civil Code sections 1788-1788.33)</u> Civil Code sections 1788.10-1788.16 provide a list of prohibited activities for debt collectors. Section 1788.11, subdivision (d) prohibits "[c]ausing a telephone to ring repeatedly or continuously to annoy the person called."
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		And subdivision (e) prohibits excessive communication with the debtor. Plaintiff has adequately alleged ultimate facts to claim Navient violated Section 1788.11. Plaintiff alleges "Navient has called [Plaintiff's] cell phone more than ten times per day, sometimes calling him back-to-back-to-back." (FAC, ¶ 82.) <u>3rd Cause of Action – Violation of the Consumer Credit Reporting Agencies Act (Civil Code sections 1785.1-1785.36)</u> "A person shall not furnish information on a specific transaction or experience to any consumer credit reporting agency if the person knows or should know the information is incomplete or inaccurate." (Civ. Code, § 1785.25, subd. (a).) Plaintiff alleges Navient furnished inaccurate information about Plaintiff's student loans not being disputed to a credit reporting agency. (FAC, ¶ 126.) <u>4th Cause of Action – Unfair Competition</u> "The scope of section 17200 is broad, encompassing anything that can properly be called a business practice and that at the same time is forbidden by law." (<i>Linear Technology Corp. v. Applied Materials, Inc.</i> (2007) 152 Cal.App.4th 115, 133 (cleaned up).) Plaintiff has sufficiently alleged a claim for unfair business practices. Plaintiff alleges Navient violated the SBBR, Rosenthal Act, and CCRAA. (FAC, ¶ 145.) <u>5th Cause of Action – Declaratory Judgment</u> Plaintiff has adequately alleged an actual controversy regarding the rights and obligations of the parties with respect to Plaintiff's student loans which may lead to subsequent litigation. Plaintiff claims there is a controversy regarding whether Plaintiff's student loans are valid and enforceable. (FAC, ¶ 152.) Motion to Strike First Amended Complaint Defendants Navient Corporation and Navient Solutions, LLC's Motion to Strike Portions of the First Amended Complaint (FAC) is DENIED. Navient improperly combined the Motion to Strike with the demurrer. The combined notice only states Navient is demurring to the FAC and it does not comply with California Rules of Court rule 3.1322, subdivision (a)
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		requiring the full portions of the complaint sought to be struck be quoted and specified consecutively. Defendants are ORDERED to file an answer within 5 days. Defendants to give notice.
10	Garica vs. Providence St Jude Medical Center 30-2025-01517910-CU-MM-CJC	Demurrer to First Amended Complaint Defendant, Johanna Su, M.D.'s demurrer to the third and fourth causes of action in plaintiffs' first amended complaint is SUSTAINED without leave to amend. Plaintiffs' opposition is unsupported by any factual allegations or supporting legal authority. The "court may treat [unsupported legal arguments] as waived, and pass it without consideration." (<i>Mansell v. Board of Administration</i> (1994) 30 Cal.App.4th 539, 546.) The third cause of action for negligent infliction of emotional distress by the baby Emma Rodriguez against Su, is not an independent tort. Since Emma Rodriguez's first and third causes of action are based on the same allegations, the third cause of action for negligent infliction of emotional distress is impermissibly duplicative of the first cause of action for professional negligence resulting in birth injury. (See <i>Award Metals, Inc. v. Superior Court</i> (1991) 228 Cal.App.3d 1128, 1135; <i>Selleck v. Globe Int'l</i> (1985) 166 Cal.App.3d 1123, 1136.) The fourth cause of action for fraudulent concealment claim fails because the factual allegations negate Emma Rodriguez's reliance. The FAC alleges plaintiff Rodriguez was born prematurely on or about 7/12/24. (FAC, ¶¶10-11.) The FAC then alleges the concealment occurred on 8/6/24, when plaintiff Rodriguez was only about 25 days old. (See FAC, ¶¶ 15, 48.) Based on these facts, plaintiff Rodriguez was too young to have appreciated the significance of the concealed fact, i.e., the removal of the medication from plaintiff Garcia's allergy list, and too young to have changed her conduct had she known of the concealed fact. Su remains a defendant on the first cause of action for professional negligence. Su is thus ORDERED to file an answer within 5 days. Motion to Strike Portions of First Amended Complaint Defendant Johanna Su, M.D.'s motion to strike is GRANTED.

		Defendant moves to strike “and reasonable attorneys fees” from page 8, line 21, prayer item no. 5 of the First Amended Complaint. The court disregards Su’s argument concerning the claim for restitution at prayer item no. 3, which is raised for the first time in its reply. A moving party is required to state the grounds upon which a motion is made in its notice of motion. (Code Civ. Proc., § 1010.) Plaintiffs did not file an opposition to this motion. Instead, Plaintiffs filed an opposition to defendant Providence St. Jude Medical Center’s motion to strike, which is not scheduled for hearing until 9/18/2026. (See ROA 44.) Each party to a lawsuit must pay his or her own attorneys fees, unless a statute or contract provides otherwise. (Code Civ. Proc., § 1021; <i>Samantha C. v. State Dept. of Developmental Services</i> (2012) 207 Cal.App.4th 71, 78.) Su to give notice.
11	Morehead vs. Strawn 30-2025- 01478447-CU- MM-CJC	Demurrer to First Amended Complaint Defendants Jon Bradley Strawn, MD and Scultura Plastic Surgery’s unopposed demurrer to the First Amended Complaint (FAC) is SUSTAINED with 10 days leave to amend for all the reasons argued in the demurrer. Motion to Strike Portions of First Amended Complaint Defendants John Bradley Strawn, MD and Scultura Plastic Surgery’s unopposed motion to strike is GRANTED with 10 days leave to amend for all the reasons argued in the motion. Clerk to give notice.
12	Bodde vs. Pineda 30-2025- 01459968-CU- OR-CJC	Motion for Summary Adjudication Plaintiff Edward H. Bodde’s motion for summary adjudication against defendant Alba Luz Pineda for an interlocutory judgment for partition is DENIED. Plaintiff’s Evidentiary Objections to Defendant’s Evidence are OVERRULED. Plaintiff’s Request for Judicial Notice is GRANTED. The grant deeds are sufficient to make a prima facie showing of the passage of title. Plaintiff has met his initial burden.

		On his shifted burden, Defendant has shown a triable issue of material fact. Defendant does not dispute signing the 2021 Trust Transfer Deed but has submitted evidence to show it was not a knowing, genuine and voluntary transfer of any ownership right. Although the 2021 Trust Transfer Deed recites Plaintiff and Defendant were “wife and husband,” Defendant declares Plaintiff and Defendant were in a romantic relationship but never married. (Pineda Decl., ¶ 7.) Notably, Plaintiff also does not dispute they were never married. (Bodde Decl., ¶ 3.) Defendant states in or about 2021 and 2022, she wanted to refinance the subject property because she hoped to purchase other property in Texas. (Pineda Decl., ¶ 4.) Defendant states Plaintiff told her she needed a co-signer to qualify for the refinance, and he agreed to help as a co-signer. (Pineda Decl., ¶ 5.) Plaintiff was only supposed to help Defendant with the refinance and she did not agree he would receive a one-half ownership interest in the Subject Property. (Pineda Decl., ¶ 6.) Defendant was the person primarily handling the refinance paperwork and communications, and when it came time to sign the refinance papers, Plaintiff presented Defendant with a stack of documents. (Pineda Decl., ¶¶ 7, 10.) Defendant did not understand a trust transfer deed adding him to title was included in that stack. (Pineda Decl., ¶ 10.) Defendant’s evidence is sufficient to create triable issues as to concealment, mistake, lack of donative or contractual intent, consideration, and ownership interest in the subject property. To the extent Plaintiff contends Defendant’s claims for fraud, cancellation of instrument, and constructive fraud as alleged in the Cross-Complaint are barred by the statute of limitations, Plaintiff’s notice of motion does not seek summary adjudication as to any causes of action alleged in Defendant’s Cross-Complaint. The only issue identified in the notice is for an interlocutory judgment for partition as alleged in Plaintiff’s Complaint. The court declines to rule on Plaintiff’s contention statute of limitations bars Defendant’s claims alleged in the Cross-Complaint. Defendant to give notice.
13	Pacheco vs. Guardian Storage Centers, LLC	Motion to Strike Portions of First Amended Complaint

	30-2025-01535568-CU-WT-CJC	The Motion to Strike Portions of First Amended Complaint (FAC) by Defendants Guardian Storage Centers, LLC and StorAmerica Management, LP is DENIED. In addition to alleging general wrongdoing to support Plaintiff's retaliation and wrongful termination claims, the FAC also alleges sufficient facts to support a request for punitive damages. For example, the FAC alleges the termination letter referenced a personal \$50,000 loan Plaintiff received from an entity associated with Defendants' ownership, and the loan agreement included an acceleration clause making the full loan balance due upon separation. (FAC, ¶ 60.) The FAC also alleges Defendants terminated Plaintiff's wife from her position as Administrative Assistant on the same day while she was on protected pregnancy disability leave and CFRA baby-bonding leave, just seven days before her scheduled return. (FAC, ¶ 61.) Defendants' simultaneous termination of both spouses resulted in the immediate loss of both spouses' incomes and all employer-provided health insurance for the family. (Ibid.) When the FAC is read as a whole, these allegations sufficiently allege facts constituting oppression as they suggest coordinated adverse action designed to maximize financial and emotional harm that subjected Plaintiff to cruel and unjust hardship in conscious disregard of his rights. Defendants are ORDERED to file an answer within 5 days. Plaintiff to give notice.
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